

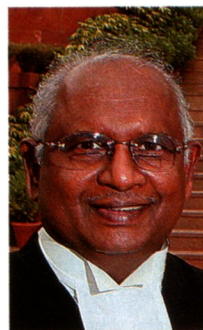
ing like a sieve and judicial activists are raising questions on the judicial stonewalling to dent any outside attempt to bring them under scrutiny. While in the Punjab and Haryana High Court, a shocking incident has blown the lid off a thriving nexus between unscrupulous lawyers, their staff, property dealers and judges, in Uttar Pradesh, the judiciary is in the firing line for diverting the provident funds of class-IV court staffers for buying electronic gadgets.

It took a mistaken home delivery of Rs 15 lakh bribe money to a sitting judge of the Punjab and Haryana High Court to drive home the extent and enormity of the rot. Investigations by the Chandigarh Police have put the spotlight on a well-entrenched bribe-for-judicial-favours scandal, dealing a serious blow to the image and credibility of the Punjab and Haryana High Court. The reaction to the damning findings of the preliminary police inquiry was swift and strong. While Justice Nirmal Yadav, whose name figured as an alleged beneficiary of the Rs 15-lakh bribe in the confessional statements of two of the accused, was asked to proceed on leave within a week of filing of the FIR, the Chandigarh Union Territory administrator and Punjab Governor, General (retd) S.F. Rodrigues has recommended a CBI inquiry on the advice of the CJI, who has also instituted an in-house probe to "get to the bottom of the case".

The scandal came in the open chiefly because of the tragedy of errors committed by its key dramatis persona Sanjiv Bansal, a law officer with the Advocate General office of Haryana Government, and was compounded by his acts of brazen confidence and charade. It had its genesis in a luncheon meeting in the capital between Bansal and his friend, Delhi-based hotelier Ravinder Singh on August 13, in which the latter handed him a packet of Rs 15 lakh requesting its delivery to Justice Yadav in Chandigarh before 8 p.m. the

same day. Bansal phoned his wife at Panchkula to get that money delivered at the official residence of Justice Yadav in Chandigarh's Sector 24. The wife deputed his junior clerk Parkash Ram to do the needful. But Ram ostensibly mixed up the names and instead gave the packet to Justice Nirmaljit Kaur at her Sector 11 residence. Sensing something amiss, Justice Kaur called the police, which took the cash and Ram into custody.

In another major embarrassment to the judiciary, at least 34 sitting judges have also come under scanner in Uttar Pradesh and a CBI probe into their alleged involvement in Ghaziabad court employees' provident funds scam is being sought. The findings of the preliminary investigation conducted by the Ghaziabad SSP have forced the Supreme Court to consider handing the matter to the CBI for a "transparent and fair probe". The integrity of many men on the bench is now under question



"THE CONDUCT OF SOUMITRA SEN HAS BROUGHT DISREPUTE TO HIGH JUDICIAL OFFICE."

K.G. BALAKRISHNAN
CHIEF JUSTICE OF INDIA

and the cloak of inviolability over the appointment of judges and shortcomings in their performance and the none-of-your-business-to-ask-us-questions attitude would only help in eroding the status of the judiciary. "The layers of protection from accountability to the judges include the lack of any effective disciplinary mechanism, the self-acquired protection from even being investigated for criminal offences, the virtual immunity from public criticism due to the law of contempt, and finally by the immunity from public scrutiny by another judicially created insulation from the Right to Information

peachment process was sought in 1993 against Justice V. Ramaswamy, a Supreme Court judge. The comptroller and auditor-general had found discrepancies in the accounts relating to the furnishing of his residence. Ramaswamy was also accused of wrongfully claiming reimbursements for phone calls made by his family. He escaped impeachment when the motion failed to get the ratification of two-thirds of the MPs present, thanks to the Congress's decision to abstain. The motion was not defeated, it merely

lapsed. The Congress had partisan reasons to defeat the impeachment. The party thought Ramaswamy was a Congress-appointed judge and his removal could undermine its credibility.

With the chance of political parties balking at taking stand on the contentious issue, Sen's case can even end up as a disappointment. With a high chance of Lok Sabha being dissolved early, the impeachment process may get struck in the midway. The process is also dependent on the presiding officers of both the Houses, whose views on the

issue are not yet clear. Sen has also gathered support from the legal fraternity in West Bengal, the state where Lok Sabha Speaker Somnath Chatterjee hails from. The setting up of an independent tribunal—consisting of a Supreme Court judge, a high court chief justice and a jurist—and follow-up investigations would also prove to be time-consuming and politically hideous. As they say, people who love sausage and people who believe in justice should never watch either of them being made.